

ELIZABETH II



1970 CHAPTER lxx

An Act to confer further powers on the Pembrokeshire Water Board in relation to the finances of the Board; and for other purposes. [17th December 1970]

WHEREAS the Pembrokeshire Water Board (hereinafter referred to as "the Board") were constituted by the Pembrokeshire Water Board Order, 1962, and are charged with supplying water within an area which comprises the whole of the administrative county of Pembrokeshire:

And whereas it is expedient that the powers of the Board with reference to finance should be enlarged as provided in this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed: 1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and

with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short and collective titles. 1.—(1) This Act may be cited as the Pembrokeshire Water Board Act 1970.

(2) The Pembrokeshire Water Board Orders, 1962 to 1969, and this Act may be cited together as the Pembrokeshire Water Board Act and Orders 1962 to 1970.

Interpretation. 2.—(1) In this Act—

“the Board” means the Pembrokeshire Water Board;

“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force;

1875 c. 83.

“local authority” means the council of a county, county borough or county district and any other authority being a local authority as defined by section 34 of the Local Loans Act, 1875, and includes any joint board if all the constituent authorities are such local authorities as aforesaid.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Power to raise money abroad.

3.—(1) Any method by which the Board are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Board to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Board consider appropriate having regard to all the circumstances of the transaction).

1947 c. 14.

(4) It shall not be lawful to exercise the powers of this section except in accordance with the Exchange Control Act, 1947.

4.—(1) The Board may lend to any local authority, and a local authority may borrow from the Board, upon such terms and conditions as may be agreed, such money as the Board think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Board by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow:

Power to Board to lend money to local authorities, etc.

Provided that the powers of this subsection shall not be exercised unless—

(a) the local authority borrowing from the Board is either—

(i) a constituent member of the Board; or

(ii) an authority having jurisdiction within the administrative county of Pembroke; or

(iii) a member authority of a consortium of which the Board is also a member; or

(b) the sum lent by the Board is part of a larger sum borrowed by the Board by way of a stock issue, bond issue, foreign loan or issue of bills for their own needs and for the needs of any local authority seeking to raise money by the same means.

(2) Any sum borrowed by the Board for the purposes of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(3) Where any sum is borrowed by the Board for the purposes of this section it shall be lawful for the Board for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Board shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Board and the borrower:

Provided that the Board shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Board in respect of the loan.

(5) All costs, charges and expenses incurred by the Board in respect of any particular loan under this section shall be met by the borrower.

Power to borrow.

5.—(1) The Board may borrow without the consent of any sanctioning authority—

- (a) such sums as may be necessary for the payment of the costs, charges and expenses of this Act;
- (b) such sums as may be requisite for the purpose of lending to a local authority under section 4 (Power to Board to lend money to local authorities, etc.) of this Act.

(2) The Board shall repay all moneys borrowed under paragraph (a) of the foregoing subsection within such period as the Board may determine not exceeding five years from the passing of this Act.

1933 c. 51.

(3) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section or under subsection (2) of the said section 4 for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

1946 c. 58.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section, other than the power of borrowing to pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Costs of Act.

6. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Board.

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